



CHAPTER cix.

An Act to confer further powers on the Corporation of A.D. 1913.
Aberystwyth with regard to their water and market
undertakings and to make further and better provision
with regard to the improvement health local government
and finance of the borough. [15th August 1913.]

WHEREAS the borough of Aberystwyth in the county of
Cardigan is a municipal borough under the management
and control of the mayor aldermen and burgesses of the borough
(in this Act called "the Corporation") and the Corporation acting
by the town council are the urban district council for the
borough :

And whereas the Acts and Provisional Orders set forth in
the First Schedule to this Act are in force in the borough
except in so far as the same may have been repealed :

And whereas the population of the town and neighbourhood
of Aberystwyth has increased and the town is frequented in the
summer by large numbers of visitors and it is expedient that
further powers of local government should be conferred upon
the Corporation :

And whereas the Corporation own and carry on waterworks
and markets and it is expedient that further powers as in this
Act specified should be conferred upon them in connexion with
their water and market undertakings :

And whereas it is expedient that further and better provision
should be made with reference to the erection of new buildings
the construction of streets the provision and maintenance of sewers
the prevention of infectious disease the control of the seashore
the provision of bands and generally for the improvement health
and local government of the borough :

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And whereas under the Aberystwyth Corporation Act 1874 the harbour of Aberystwyth was taken over by the Corporation from a body of statutory trustees in whom the same was then vested and whose funds were insufficient to enable them to pay arrears of interest on their mortgage debts or duly to maintain and repair the harbour or to execute works in connexion therewith which were urgently required in the public interest:

And whereas the said transfer of the harbour has involved the Corporation in heavy liabilities and outlays which have been unduly burdensome to the ratepayers and the carrying on of the harbour undertaking still results in a large annual deficiency which has to be made good out of the rates:

And whereas by the Aberystwyth Harbour Order 1905 certain provisions were made for dealing with the harbour finances and the redemption of loans borrowed and loans then proposed to be borrowed for the purposes of the harbour undertaking:

And whereas the said Order made arrangements for the payment of harbour expenses and loan charges partly out of harbour revenue and Corporation properties and the borough fund and the provision of adequate sinking funds for meeting certain of the harbour liabilities was by the said Order left contingent upon the adequacy of particular revenues and was not made an absolute charge upon the general district rate:

And whereas it is expedient that the said financial arrangements should be simplified and placed upon a sounder basis and that in consideration of the liability for all harbour sinking funds being charged upon the general district rate the periods for repayment of loans of the Corporation should be equalised as in this Act provided and provision should be made for redeeming the annuities which were created by the Act of 1874:

And whereas the Corporation have agreed to contribute sums amounting in all to five thousand pounds towards the erection of the National Library for Wales at Aberystwyth and it is expedient that four thousand pounds of the said amount should be raised by a loan the repayment of which should be spread over a period of years:

And whereas an estimate has been prepared by the Corporation for the purchase of lands and easements and for the execution of the works by this Act authorised for the purposes

of the waterworks undertaking and such estimate amounts to twenty-eight thousand two hundred and forty pounds and sixteen shillings: A.D. 1913.

And whereas the several works included in such estimate are permanent works and it is expedient that the cost thereof should be spread over a term of years:

And whereas it is expedient that the other provisions in this Act contained should be passed into law:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed and the approval of the Local Government Board has been obtained:

And whereas plans and sections showing the lines and levels of the works authorised by this Act and a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands required or which may be taken for the purposes or under the powers of this Act were duly deposited with the clerk of the peace for the county of Cardigan and are in this Act referred to as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

1. This Act may be cited as the *Aberystwyth Corporation Act 1913.* Short title.

2. The following Acts so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act are incorporated with and form part of this Act (namely):— Incorporation of Acts.

The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845).

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Interpreta-
tion.

3. In this Act the following words and expressions have the meanings hereby assigned unless the subject or context otherwise requires :—

“The borough ” means the borough of Aberystwyth ;

“The Corporation ” means the mayor aldermen and burgesses of the borough ;

“The council ” means the town council of the borough ;

“The borough fund ” “the borough rate ” “the district fund ” and “the general district rate ” mean respectively the borough fund the borough rate the district fund and the general district rate of the borough ;

“The town clerk ” “the surveyor ” “the medical officer ” and “the inspector of nuisances ” mean respectively the town clerk the surveyor the medical officer of health and the inspector of nuisances appointed by the council in pursuance of any public Act and “medical officer ” includes any deputy medical officer of health duly appointed ;

“Seashore ” means the foreshore and all the beach shingle and sands and any seawall or bank adjoining the same within the borough now or hereafter belonging to or leased to the Corporation and lying between the promenade or seafront and low-water mark of ordinary spring tides ;

“Infectious disease ” means any infectious disease to which the Infectious Disease (Notification) Act 1889 for the time being applies within the borough ;

“Daily penalty ” means a penalty for every day on which any offence is continued after conviction ;

“Statutory security ” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include any securities of the Corporation or annuities rentcharges or securities transferable by delivery ;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed ;

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“Revenues of the Corporation” includes the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and rates or contributions leviable by or on the order or precept of the Corporation.

Each of the Acts and Orders set forth in Part I. of the First Schedule to this Act is in this Act referred to as the Act or Order of the year in which the same was passed or made.

Unless the subject or context otherwise requires words and expressions to which meanings are assigned by the Acts wholly or partially incorporated with this Act or by the Public Health Acts have in this Act the same respective meanings.

4. This Act shall extend and apply to and within the borough except where otherwise expressed or implied.

Application
of Act.

PART II.

WATER.

5. The powers of leasing given by the Crown Lands Act 1829 shall extend to enable the Commissioners of Woods with the consent of the Treasury to grant and to enter into any agreement for granting to the Corporation a lease or leases of such Crown lands easements and rights as may be required for any of the purposes of this Act or of the water undertaking of the Corporation for any term not exceeding 99 years from the passing of this Act and the Commissioners of Woods may take a fine on the granting of any such lease in lieu of such annual sum as it shall appear to them would together with any

Powers of
Commis-
sioners of
Woods to
grant a
lease for
99 years to
Corpora-
tion.

A.D. 1913. — annual sum reserved by the lease have been a reasonable rent or consideration for such lease in case no fine had been taken and the amount of any fine taken under the powers of this Act shall be carried to the account of the capital of the land revenues of the Crown and be applied accordingly.

Extension
of limits of
supply.

6. The limits within which the Corporation may supply water are hereby extended so as to include the borough and the parishes of Lower Vaenor Isa'ndre Ucha'ndre Melindwr and Parcel Canol in the county of Cardigan and all the existing powers of the Corporation with respect to water supply shall be exerciseable within the said extended limits (in this Act referred to as "the limits of supply") as fully as they are now exerciseable within the existing limits of supply of the Corporation.

Power to
make water-
works.

7. Subject to the provisions of this Act the Corporation may make and maintain in the lines and situations and according to the levels shown on the deposited plans and sections and in over upon or under the lands delineated on the said plans and described in the deposited book of reference the waterworks shown on those plans together with all necessary drains pipes sluice valves air-valves washouts junctions tunnels embankments bridges apparatus and other works and conveniences in connexion with or incidental to such waterworks.

The principal waterworks herein-before referred to are the following :—

An aqueduct conduit or line or lines of pipes commencing in the existing reservoir of the Corporation known as Llyn Llygad Rheidol in the parish of Trefeirig in the county of Cardigan and terminating by a junction with the existing water main of the Corporation near the Old Reservoir at Buildings Farm in the parish of Isa'ndre in the said county.

Lateral and
vertical
deviation.

8. The Corporation in constructing the works by this Act authorised may make deviations from the lines of such works but not exceeding the limits of lateral deviation shown on the deposited plans and where on any road no such limits are shown the boundaries or fences of such road shall be deemed to be such limits and they may also deviate from the levels delineated on the deposited sections to any extent not exceeding ten feet upwards and to any extent downwards Provided that no part of any line of pipe shall be constructed or laid so as to be above

the surface of the ground except so far as is shown on the deposited sections and except for the purposes of crossing over a stream. A.D. 1913.

9. Subject to the provisions of this Act the Corporation may enter upon take and use such of the lands shown on the deposited plans and described in the deposited book of reference as they may require for the purposes of their water undertaking and may for the said purposes collect impound take use divert and appropriate the waters of the Nant-y-graig-las stream and all such springs streams and waters as are now or may be intercepted by the Llyn Llygad Rheidol reservoir of the Corporation and the works connected therewith or by the works by this Act authorised. Power to take lands and water.

10. The Corporation shall not construct any works for taking or intercepting water from any lands acquired by them unless the works are authorised by and the lands upon which the same are to be constructed are specified in this or some other Act of Parliament. Limiting powers of Corporation to abstract water.

11.—(1) The Corporation may in lieu of acquiring any lands for the purposes of the works authorised by this Act where the same are intended to be constructed underground acquire such easements only in such lands as they may require for such purposes and may give notice to treat in respect of such easements describing the nature thereof and the provisions of the Lands Clauses Acts shall apply to and in respect of the acquisition of such easements as fully as if the same were lands within the meaning of those Acts. Corporation may acquire easements only in certain cases.

(2) As regards any lands in respect of which the Corporation have acquired easements only under the provisions of this section the Corporation shall not be required or entitled to fence off or sever such lands from the adjoining lands but the owners or occupiers for the time being shall subject to such easements have the same rights to use and cultivate the said lands at all times as if this Act had not passed.

(3) Provided always that nothing in this section contained shall authorise the Corporation to acquire by compulsion any such easement in any case in which the owner in his particulars of claim shall require the Corporation to acquire the lands in respect of which they have given notice to treat for the acquisition of an easement only and every notice to treat for the acquisition of an easement shall be endorsed with notice of this provision.

A.D. 1913.

Period for
compulsory
purchase of
lands.

Period for
completion
of works.

12. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of five years from the passing of this Act.

13. If the works by this Part of this Act authorised are not completed within ten years from the passing of this Act the powers by this Act granted for the making thereof or otherwise in relation thereto shall cease except as to so much thereof as is then completed. Provided always that subject to the restrictions and provisions of this Act the Council may at any time after the expiration of the said period lay down additional lines of pipes and alter enlarge extend and renew their mains pipes and other works as they may think expedient to provide for the requirements of their water supply.

Persons
under dis-
ability may
grant ease-
ments &c.

14. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to
hold lands
and execute
works for
protection of
waters and
waterworks.

15. For the purpose of protecting any of their waters and waterworks against pollution contamination nuisance encroachment or injury the Corporation may hold any lands acquired by them for the purposes of their water undertaking and may in and upon any such lands construct lay down and maintain drains sewers watercourses and other works and conveniences necessary or proper for the purpose of intercepting or taking all foul waters arising or flowing in or over such lands or necessary or proper for preventing the water which the Corporation are empowered to take from being polluted fouled contaminated or discoloured and the Corporation may for the purposes aforesaid carry any such drain sewer or watercourse under across or along any street or road within or adjoining the said lands subject and according to the provisions of the Waterworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes.

16. Notwithstanding anything in the Lands Clauses Acts or any other Act or Acts to the contrary the Corporation may retain hold and use for such time as they may think fit or may sell lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands purchased by them for the purposes of their water undertaking or any interest therein and may sell exchange or dispose of any rents reserved on the sale exchange lease or other disposition of such lands and may make do and execute any deed act or thing proper for effectuating any such sale lease exchange or other disposition and on any exchange may give or take any money for equality of exchange.

A.D. 1913.

Power to
retain sell
&c. lands.

17. The Corporation on selling any lands acquired for or in connexion with their water undertaking and not required for the purposes of that undertaking may reserve to themselves all or any part of the water rights or other easements belonging thereto and may make the sale subject to such reservations accordingly and may also make any such sale subject to such other reservations special conditions restrictions and provisions with respect to use of water exercise of noxious trades or discharge or deposit of manure sewage or other impure matter and otherwise as they may think fit.

Reservation
of water
rights on
sale.

18. The waterworks by this Act authorised shall form part of the existing water undertaking of the Corporation and all statutory powers and provisions for the time being in force with respect to the said undertaking (including the powers conferred by this Act) shall so far as applicable extend and apply to and in connexion with the said waterworks.

Waterworks
to form part
of existing
water under-
taking.

19. The Act of 1835 (except the sections and schedule of that Act set out in the Fourth Schedule to this Act) and the following sections of the Act of 1872 (namely):—

Repeals.

29 (Rates for private baths);

31 (Water supplied by agreement);

32 (When several tenements supplied with water by one pipe);

33 (Service pipes);

34 (Penalty for improperly fitting service pipes);

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- 35 (Commissioners may sell by measure);
- 36 (Notice to Commissioners of putting up water meters);
- 38 (Register of water meter to be *prima facie* evidence of the water consumed);
- 39 (Power to commissioners for ascertaining quantity consumed by meter and for removing meters &c.);
- 40 (Power to cut off water in certain cases);
- 105 (Contracts for supply of gas &c. not to disqualify Commissioners or members of local board);

are hereby repealed.

Temporary discharge of water into streams.

20.—(1) For the purpose of constructing enlarging extending repairing cleansing or examining any existing or authorised water-works of the Corporation the Corporation may cause the water in such works to be temporarily discharged into any available stream or watercourse.

(2) In the exercise of the power conferred by this section the Corporation shall do as little damage as may be and shall pay compensation to all persons for all damage sustained by them by the exercise of such power the amount of compensation to be settled in default of agreement by arbitration in accordance with the provisions of the Arbitration Act 1889.

Notice to Corporation of connecting or disconnecting meters.

21. Before any person connects or disconnects any meter by means of which any of the water of the Corporation is intended to be or has been registered he shall give not less than twenty-four hours' notice in writing to the Corporation of his intention to do so and all alterations or repairs and the connecting and disconnecting of meters shall be done at his cost and under due superintendence of any officer of or person authorised by the Corporation and any person offending against this enactment shall for every such offence be liable to a penalty not exceeding forty shillings.

Power to lay pipes in streets not dedicated to public use.

22. The Corporation may on the application of the owner or occupier of any premises within the limits of supply abutting on or being erected in any street laid out or made but not dedicated to public use supply such premises with water and may lay down take up alter relay repair remove and renew in across along or out of such street such pipes and apparatus as may be requisite or proper for furnishing such supply in the same way and to the same extent as if such street had been dedicated to public use.

23. The Corporation shall not be compelled to furnish a supply of water for domestic purposes for any less sum than eight shillings and eightpence in any one year.

A.D. 1913.

Minimum
charge for
domestic
purposes.

24. The Corporation may charge in respect of every water-closet beyond the first (for which no additional charge shall be made) on any premises within the limits of this Act a sum not exceeding five shillings per annum and for every fixed bath beyond the first capable of containing not more than fifty gallons a sum not exceeding ten shillings per annum and for every fixed bath capable of containing more than fifty gallons such sum as the Corporation may think fit such additional sum to be paid quarterly in advance and to be recoverable in all respects with and as the water rate.

Additional
charges for
supply of
water.

25. The Corporation may supply water for other than domestic purposes on such terms and conditions as the Corporation think fit and may supply water by measure either for domestic or other purposes and the moneys payable for the supply of water under this section shall be recoverable in the same manner as water rates or water rents. Provided always that no person shall be entitled to a supply of water for other than domestic purposes if such supply would interfere with the sufficiency of the supply of water for domestic purposes throughout the limits of supply.

Supply by
measure.

26. Where water is supplied by measure the register of the meter or other instrument for measuring water shall be *primâ facie* evidence of the quantity of water consumed and in respect of which any water rate or rent is charged and sought to be recovered by the Corporation. Provided that if the Corporation and the person to whom the water is supplied differ as to the quantity consumed, such difference shall be determined upon the application of either party by a court of summary jurisdiction who may also order by which of the parties any costs of the proceedings before them shall be paid and the decision of such court shall be final and binding on all parties.

Register of
meter to be
primâ facie
evidence.

27. Subject to the provisions of the Waterworks Clauses Act 1847 the Corporation may for the purpose of preventing and detecting waste affix and maintain meters and similar apparatus on the service pipes and mains of the Corporation and stop-cocks in the pipes supplying houses with water and may insert in the roads or footways the necessary covers or boxes for giving access

Detection of
waste.

A.D. 1913. — and protection thereto and may for that purpose break up and interfere temporarily with public and private streets roads lanes footways courts passages tramways gas or water pipes electric lines wires and apparatus Provided that the Corporation shall not interfere with any electric lines wires and apparatus belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of the Telegraph Act 1878.

Power to Corporation to supply materials.

28. The Corporation may if requested by any person supplied or about to be supplied by them with water furnish to him and repair or alter but shall not manufacture any such pipes valves cocks cisterns baths meters soil-pans waterclosets and other fittings as are required or permitted by their regulations and may provide all materials and do all work necessary or proper in that behalf and the reasonable charges of the Corporation in providing such materials and executing such work shall be paid by the person requiring the same.

Corporation not bound to supply several houses by one pipe.

29. The Corporation shall not be bound to supply more than one house by means of the same communication pipe and they may if they think fit require that a separate pipe be laid from the nearest main into each house supplied by them with water.

Notice of discontinuance.

30. A notice to the Corporation from a consumer for the discontinuance of a supply of water shall not be of any effect unless it be in writing signed by or on behalf of the consumer and be left at or sent by post to the office of the Corporation or be given by the consumer personally at the office of the Corporation.

Revision of water rates.

31. The Corporation may with the sanction of the Local Government Board at any time increase the water rates leviable by them by such amount as may be considered necessary in order to meet the estimated expenditure of the water undertaking of the Corporation.

Supply of water by hose pipe to stables &c.

32. When water supplied for domestic purposes is used for washing horses carriages or motor cars or for other purposes in stables or premises where horses carriages or motor cars are kept the Corporation may if a hose pipe or other similar apparatus is used charge such reasonable sum not exceeding twenty shillings per annum as they may prescribe and any sum charged under this section shall be recoverable in the same manner as water rates.

33. The Corporation may enter into and carry into effect agreements with any local authority company or persons for the supply of water beyond the limits of supply to any such authority company or persons respectively in bulk for any purpose and for such remuneration and on such terms and conditions and for such period as may be agreed upon Provided that such supply shall not be given except with the consent of any company or person supplying water under Parliamentary authority within the area to be supplied and of the local authority of the district comprising that area nor if and so long as such supply would interfere with the supply of water for domestic purposes within the limits of supply.

A.D. 1913.
Contracts
for supply-
ing water
in bulk.

PART III.

MARKETS.

34. Subject to the provisions of this Act the Corporation may from time to time purchase and take by agreement for the purposes of their market undertaking any quantity of land within the borough not exceeding five acres Provided that the Corporation shall not create or permit any nuisance on any lands taken under the powers of this section and no buildings shall be erected by the Corporation on such lands except in connexion with their market undertaking.

Power to
acquire fur-
ther lands
for market
purposes.

35. The market keeper any officer of the market the inspector of nuisances or any constable may remove and exclude from the cattle market of the Corporation all animals which after inspection by a duly registered veterinary surgeon shall be suspected by him to be affected with tubercular disease or any old emaciated or diseased animal which in the opinion of a duly registered veterinary surgeon is unfit for human food.

Removal and
exclusion
from market
of diseased
animals.

36. The Corporation may provide maintain and use in connexion with any slaughter-house accommodation provided by them cold stores and refrigerators and all other necessary buildings works conveniences plant and apparatus in connexion therewith or incidental thereto.

Provision of
cold stores.

37.—(1) It shall not be lawful to blow or inflate the carcase or any part of the carcase of any animal slaughtered within or brought into the borough.

Prohibition
of blowing
or inflating
carcases.

A.D. 1913.

(2) Any person who shall offend against the provisions of subsection (1) of this section or shall expose or deposit for sale within the borough a carcase so blown or inflated or any part thereof shall be liable to a penalty not exceeding twenty shillings.

PART IV.

WINTER GARDENS.

Power to
provide
winter
gardens &c.

38. The Corporation may upon any lands belonging to them erect and construct and hold furnish equip maintain insure and carry on winter gardens pavilions bandstands refuges refreshment assembly or reading rooms baths and other buildings.

Power to
charge for
admission.

39. The Corporation may make such reasonable charges as they may think fit for admission to the winter gardens pavilions reading rooms and other conveniences in connexion therewith and they may also make such further charge for the use of chairs and for playing bowls lawn tennis croquet and other games in the Castle grounds or in any public recreation ground as they may deem fit.

Bands and
concerts.

40.—(1) The Corporation may pay or contribute towards the payment of bands of music or vocal choirs and may provide or arrange for the provision of concerts or other entertainments on the Promenade or Castle grounds or in any recreation ground or public building for the time being vested in the Corporation and suitable for the purpose.

(2) The Corporation may on the Promenade or Castle grounds or in any winter garden or recreation ground vested in them enclose an area for the purpose of any such concert or other entertainment as aforesaid or for any performances by such bands or choirs.

(3) The Corporation may make such charges as they think fit for admission to any such building or enclosure as aforesaid in connexion with any such concert entertainment or performance and may make regulations for securing good and orderly conduct during any such concert entertainment or performance.

(4) The Corporation may provide and sell or authorise any person or persons to provide and sell programmes of any concert entertainment or performance given in pursuance of this section.

(5) Subject to the provisions of this Act the Corporation may pay or contribute towards the cost of advertising any concerts or performances given in pursuance of this section. A.D. 1913.

(6) Provided that no payment or contribution shall be made under this section unless incurred in pursuance of a resolution of an absolute majority of the whole number of the council at a meeting of the council after seven clear days' notice of such meeting and of the intention to propose such resolution.

41. The Corporation may place or authorise any person or persons to place seats or chairs in any street or place or on the seashore and lands adjacent thereto now or hereafter belonging to or leased to them for the use of the public and may if they think fit charge or allow such person or persons to charge reasonable sums for the use of the chairs and may make byelaws for regulating the use of the seats and chairs and for preventing injury or damage thereto Provided that no byelaws affecting the seashore below high-water mark shall come into operation until the consent of the Board of Trade has been obtained. Seats and chairs may be provided.

42. The Corporation may appoint officers for securing the observance of this Part of this Act and of the byelaws and regulations made thereunder and may procure such officers to be sworn in as constables for that purpose but any such officer shall not act as a constable until he has been so sworn in and unless he is in uniform or provided with a warrant. Power to appoint officers.

43. Subject to the provisions of this Part of this Act the moneys received by the Corporation under this Part of this Act shall be carried to the credit of the borough fund and the expenses incurred by them in exercising the powers contained in this Part of this Act may be paid out of the same fund. Receipts and expenses under Part IV. of Act.

PART V.

GOLF LINKS.

44. The Corporation may by agreement purchase or acquire or take on lease and hold and use for the purposes of a golf course and let on lease or otherwise to any club company body or person such lands as may be necessary or expedient for that purpose and may upon any such lands form alter maintain regulate manage and use a golf course with all proper and convenient houses pavilions works buildings and conveniences and may make such charges for the use thereof or may let Power to establish a golf course.

A.D. 1913. — the same as they think fit Provided that the public shall be entitled to use any golf course provided by the Corporation on payment of such reasonable charges as the Corporation may prescribe.

Byelaws. 45. The Corporation may make and enforce byelaws with respect to any golf course belonging to them and for regulating the use thereof respectively.

Receipts and expenses under Part V. of this Act. 46. The moneys received by the Corporation under this Part of this Act shall be carried to the credit of the borough fund and the expenses incurred by them in exercising the powers contained in this Part of this Act may be paid out of the borough fund or borough rate.

PART VI.

STREETS AND BUILDINGS.

Building line in new streets to be shown on plan. 47.—(1) Every person who intends to form a new street shall in addition to the information required to be supplied to the Corporation by virtue of any enactments or byelaws with respect to streets and buildings in force within the borough distinctly define and mark on a plan drawn to such scale as the Corporation may require and to be prepared and submitted by such person to the Corporation for their approval the proposed line of frontage of any house or building to be erected in or fronting such street (in this section called "the building line").

(2) It shall not be lawful to erect or bring forward in any such street any house or building or any part thereof nor any addition to any house or building until the building line for such street has been approved by the Corporation nor beyond or in front of the building line approved by the Corporation and any person offending against this enactment shall be liable to a penalty not exceeding twenty pounds and to a daily penalty not exceeding forty shillings.

(3) The provisions of section 3 of the Public Health (Buildings in Streets) Act 1888 shall not apply to any house or building erected or proposed to be erected on lands in respect of which a building line as aforesaid shall have been submitted to and approved by the Corporation.

(4) In the event of the Corporation requiring as a condition of their approval of any such plan the setting back of the

building line shown on the plan to a greater distance from the centre of any such street than one half of the minimum width of the street allowed by the building byelaws of the Corporation in force for the time being and an additional one seventh of such prescribed width the Corporation shall make compensation to the owner of any land lying between such one seventh and the building line for any damage sustained by him by reason of his being unable to build upon such land.

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(5) For the purposes of this section the surveyor shall by certificate under his hand at or before the time of the approval of the building line by the Corporation determine the centre of any street or intended street.

(6) The amount of any compensation payable under this section shall in default of agreement be determined by arbitration in accordance with the provisions of the Arbitration Act 1889.

48. Every continuation of an existing street shall for the purposes of the Public Health Acts and of this Act and of any byelaws made thereunder and for the time being in force in the borough be deemed to be a new street.

Continuation of existing streets to be deemed new streets.

49.—(1) No street shall be laid out exceeding three hundred feet in length without having a street at each end thereof and an intersecting street at intervals of not more than one hundred and fifty yards in any such street.

Intersecting streets.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(3) For the purposes of this section "intersecting street" means a side or cross street forming a junction with or crossing another street.

50. When a road or lane is about to become a new street within the meaning of the Public Health Act 1875 but the land on only one side of such street has been or is about to be built on the Corporation may instead of requiring the owner of such land to widen such road or lane to a width prescribed by the byelaws in force in the borough require such owner to widen such road or lane so as to give a width not less than one half of such prescribed width from the old centre line of such road or lane to the boundary thereof adjoining such land Provided that when the land on the opposite side of such road

Further provisions as to new streets and widenings.

A.D. 1913. — or lane is about to be built on the Corporation shall require the owner of such land to complete the widening of such road or lane so as to give the complete width prescribed by the byelaws of the Corporation and the owner shall complete the same accordingly.

For preventing soil from being washed into streets.

51.—(1) The owners or occupiers of all lands abutting upon any public street and the owners or occupiers of all lands abutting upon any private street communicating with any public street shall so fence off channel or embank their lands as to prevent the soil and sand of such lands from falling upon or being washed or carried into any public street sewer or gully in such quantities as will obstruct the highway or choke up such sewer or gully.

(2) If any person shall for one month after notice in writing from the Corporation fail in any respect to comply with the provisions of subsection (1) of this section he shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

For preventing water flowing on footpath.

52. Where premises abutting upon any street are so situate that the surface water from such premises flows on to the footpath of such street the owner of such premises shall within one month after service of an order of the Corporation for that purpose execute such works as may be necessary to prevent the water from such premises from flowing on to the footpath and in default of compliance with such order within the period aforesaid such owner shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding forty shillings.

Trees or shrubs overhanging streets and footpaths.

53.—(1) Where any tree hedge or shrub overhangs any street or footpath so as to obstruct or interfere with the light from any public lamp or to interfere with vehicular traffic or with the free passage or comfort of passengers the Corporation may serve a notice on the owner of the tree hedge or shrub or on the occupier of the premises on which such tree hedge or shrub is growing requiring him to lop the tree hedge or shrub within seven days so as to prevent such obstruction or interference and in default of compliance the Corporation may themselves carry out the requisition of their notice doing no unnecessary damage.

(2) Any person aggrieved by any requirement of the Corporation under this section may appeal to a court of summary jurisdiction within seven clear days after the service of such

notice provided he gives written notice of such appeal and the grounds thereof to the town clerk and the court shall have power to make such order as the court may think fit and to award costs such costs to be recoverable as a civil debt Notice of the right to appeal shall be endorsed on every requirement of the Corporation under this section. A.D. 1913.

54. All buildings or parts of buildings which may in future be erected on the site of any building or on any land which site or land in consequence of any improvement made by the Corporation becomes front land shall be erected according to such elevation as the Corporation approve and if the owner lessee or occupier of any building or land which on the making of any such improvement acquires a frontage to the street makes any door or entrance opening upon or communicating with the street or any wall or fence by the side of the street every such owner lessee or occupier shall make the building wall or fence in a line and the elevation thereof fronting to or towards the street in accordance with a drawing approved by the Corporation and in case the Corporation for a space of six weeks after any drawing of such elevation is submitted to them neglect to notify their determination in writing with reference thereto they shall be deemed to have approved thereof Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings The Corporation shall make compensation to the owner of any building or land for any loss or damage he may suffer by reason of the setting back or bringing forward of such building wall or fence.

Elevation of buildings erected on front lands to be subject to approval of Corporation.

55. The owner of any dwelling-house which is not provided with a proper and sufficient water supply who shall occupy or allow to be occupied such dwelling-house shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings unless the dwelling-house was erected before the passing of this Act and such supply is not available.

Provisions as to houses without water supply.

56. Sections 69 and 70 of the Towns Improvement Clauses Act 1847 (incorporated with the Public Health Acts) shall extend and apply to any crane or apparatus for hoisting or lowering goods and any other like projection from or at any building and whether erected before or after the passing of this Act which the Corporation may determine to be dangerous or an obstruction to the safe or convenient use of any street.

Prevention and removal of projections over streets.

A.D. 1913.

Erection of buildings to greater height than adjoining buildings.

57. In case any building is at any time after the passing of this Act erected or raised to a greater height than the adjoining building and any flues or chimneys of such adjoining building are in the outer or party wall of the building so erected or raised the person erecting or raising such building shall at his own expense build up those flues and chimneys so that the top thereof may be of the same height as the top of the chimneys of the building so erected or raised. Any person who shall offend against the provisions of this section shall be liable to a penalty not exceeding forty shillings and to a daily penalty not exceeding twenty shillings.

Means of escape from buildings in case of fire.

58.—(1) Every new building exceeding thirty-five feet in height (used or intended to be used as a tavern hotel hospital boarding-house common lodging-house or school) shall be provided on the storeys the upper surface of the floor whereof is above twenty feet from the street level with such means of escape in the case of fire for the persons dwelling or employed therein as may be reasonably required under the circumstances of the case and no such building shall be occupied until the Corporation shall have issued a certificate that the provisions of this section have been complied with in relation thereto.

(2) The means of escape in case of fire provided in any building in pursuance of this section shall be maintained in good and efficient condition and free from obstruction.

(3) Nothing in this section contained shall be deemed to interfere with the operation of sections 14 and 15 of the Factory and Workshop Act 1901 or of any Act amending the same.

(4) Any person offending against the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

Exemption of railway companies.

59. Nothing in this Part of this Act or in any byelaws to be made thereunder shall apply to any building (not being a dwelling-house) belonging to any railway company and used by such company as a part of or in connexion with their railway.

PART VII.

SEWERS AND DRAINS.

Corporation may require enlarged sewer.

60. If in any street not repairable by the inhabitants at large the Corporation for the purpose of main drainage or otherwise shall require a larger sewer to be made than they

consider necessary for the ordinary sewerage of such street the person laying out such street shall construct such enlarged sewer in accordance with the requirements of the Corporation and the additional cost thereof as ascertained by the surveyor shall be paid by the Corporation.

A.D. 1913.

61. If the owner or occupier of any premises desires that the sewer or drain from such premises shall be made to communicate with any sewer of the Corporation such communication shall be made by the Corporation upon the cost or estimated cost of making the communication being paid to the Corporation or the payment thereof to them being secured to their satisfaction and the Corporation may execute all works necessary for that purpose.

Corporation may make communications between private drains and their sewers on payment of cost.

62. The powers given by section 19 of the Public Health Acts Amendment Act 1890 in relation to two or more houses belonging to different owners shall extend and apply to two or more houses belonging to the same owner.

Combined drains.

63.—(1) If it appears to the Corporation that two or more houses may be drained more economically or advantageously in combination than separately and a sewer of sufficient size already exists or is about to be constructed within one hundred feet of any part of the premises the Corporation may when the drains of such houses are first laid order that such houses be drained by a combined drain to be constructed either by the Corporation if they so decide or by the owners in such manner as the Corporation shall direct and the costs and expenses of such combined drain and the repair and maintenance thereof shall be apportioned between the owners of such houses in such manner as the Corporation shall determine and if such drain is constructed by the Corporation such costs and expenses may be recovered by the Corporation from such owners.

Corporation may order houses to be drained by a combined drain.

(2) Any combined drain constructed in pursuance of this section shall for the purposes of the Public Health Acts be deemed to be a drain and not a sewer.

(3) Provided that the Corporation shall not exercise the powers conferred by this section in respect of any house plans for the drainage of which shall have been previously approved by them.

64. The Corporation may on the application and at the expense of any person owning or occupying premises abutting or fronting on any street not repairable by the inhabitants at

Power to lay drains in private streets.

A.D. 1913. — large wherein a sewer has been laid lay down take up alter relay or renew in across or along such street such drains as may be requisite or proper for connecting such premises with the sewer doing as little damage as may be in the execution of the powers hereby granted and making compensation for any damage which may be done in the execution of such powers such compensation to be ascertained by and recoverable before a court of summary jurisdiction.

Reconstruction of drains.

65.—(1) It shall not be lawful for any person to reconstruct or alter the course of any drain communicating with any sewer of the Corporation except in accordance with the provisions of the byelaws relating to the drainage of existing buildings.

(2) Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

Notice of intention to repair drains.

66.—(1) It shall not be lawful for any person to repair any drain communicating with any sewer of the Corporation without giving to the Corporation or the surveyor twelve hours previous notice in writing of his intention to do so except in case of emergency and in that case it shall not be lawful for any person to cover over the drain without giving the like notice of his intention to do so.

(2) Free access to such drain or work of repair shall be afforded to the surveyor or any officer of the Corporation authorised in writing by the town clerk for the purpose of inspection.

(3) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds.

Improper construction or repair of watercloset or drain.

67. If a watercloset drain or soil pipe is so constructed or repaired as to be a nuisance or injurious or dangerous to health the person who undertook or executed such construction or repair shall unless he shows that such construction or repair was not due to any wilful act neglect or default be liable to a penalty not exceeding twenty pounds Provided that where a person is charged with an offence under this section he shall be entitled upon information duly laid by him to have any other person being his agent servant or workman whom he charges as the actual offender brought before the court at the time appointed for hearing the charge and if he proves to the satisfaction of the court that he had used due diligence to prevent the commission of the offence and that the said other person committed the

offence without his knowledge consent or connivance he shall be exempt from any penalty and the said other person may be summarily convicted of the offence. A.D. 1913.

68. If any person causes any drain watercloset earthcloset privy or ashpit to be a nuisance or injurious or dangerous to health by wilfully destroying or damaging the same or any water supply apparatus pipe or work connected therewith or by otherwise wilfully stopping up or wilfully interfering with or improperly using the same or any such water supply apparatus pipe or work he shall be liable to a penalty not exceeding five pounds Provided that nothing in this section shall prejudice any right which the owner or occupier of any premises aggrieved by any such act may have to recover compensation in respect of any damage suffered by him by reason of such act. Wilful
damage to
drains water-
closets &c.

69. Any river stream or watercourse or any part or parts thereof respectively so choked or silted up as to obstruct or impede the proper flow of water along the same and thereby to cause or render probable an overflow of such river stream or watercourse on to or into the land and property adjacent thereto shall be deemed a nuisance within the meaning of section 91 of the Public Health Act 1875 and all the provisions of that Act relating to nuisances shall apply to every such river stream or watercourse notwithstanding that the same may not be injurious to health. Watercourse
choked up to
be a nuisance
under Public
Health Act
1875.

70.—(1) On the representation of any person to the Corporation that the water in any well tank or cistern whether public or private or supplied from any public pump is used or likely to be used by man for drinking or domestic purposes or for manufacturing drink for the use of man and is so polluted or is likely to be so polluted as to be injurious or dangerous to health a petty sessional court on complaint by the Corporation and after hearing the person who is the owner or occupier of the premises to which the well tank or cistern belongs if it be private or in the case of a public well tank cistern or pump is alleged in the complaint to be interested in the same or after giving him an opportunity of being heard may by summary order direct the well tank cistern or pump to be permanently or temporarily closed or make such other order as appears to the court requisite to prevent injury or danger to the health of persons drinking the water. Power to
close polluted
wells.

(2) The court may if they see fit cause the water complained of to be analysed at the cost of the Corporation.

A.D. 1913.

(3) If the person on whom the order is made fails to comply therewith he shall be liable to a fine not exceeding twenty pounds and a petty sessional court on complaint by the Corporation may authorise the Corporation to execute the order and any expenses incurred by them in so doing may be recovered in a summary manner from the said person.

PART VIII.

SANITARY AND OTHER PROVISIONS.

Persons to
furnish
names of
laundrymen
to whom
clothes &c.
from infected
houses sent.

71.—(1) If the medical officer shall at any time receive notice of a case of infectious disease he may apply to the person who is required by section 3 of the Infectious Disease (Notification) Act 1889 to send a notice of the case of infectious disease for the name and address of any laundryman to whom any clothes or other things may from time to time during the continuance of the infectious disease be sent for mangling or washing from the house in which the case of infectious disease exists and such person shall forthwith furnish such information accordingly.

(2) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds.

Removal
of body of
person dying
of infectious
disease.

72. When any person suffering from infectious disease whereof notice shall have been given to the medical officer shall die in the borough of such disease the medical officer may give notice thereof to the person responsible for the conduct of the burial of the body of such person and when any such notice shall have been given it shall not be lawful to transport such body by railway or other public conveyance (not being a conveyance reserved for such purpose) unless and until the medical officer has certified that every precaution necessary for the public safety has been adopted to his satisfaction and any undertaker and any person so responsible who shall after the giving of such notice knowingly remove or assist in removing such body without such certificate and any person who unless unaware of such notice shall procure or endeavour to procure the removal of such body without having obtained such certificate shall be liable to a penalty not exceeding ten pounds.

Sanitary
conveniences
for workmen
engaged on
buildings.

73.—(1) The contractor or builder engaged in or upon the construction reconstruction or alteration of any building shall where practicable provide to the reasonable satisfaction of the Corporation and until the completion of any such work or operation

such water or other closets and urinals in or in connexion with such building as may be sufficient for the accommodation of the workmen employed. A.D. 1913.

(2) Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

74. The Corporation may by notice in writing require the owner or occupier of any dwelling-house to provide galvanised iron or enamelled iron dustbins for the convenient removal of house refuse and such dustbins shall be of such size and construction as may be approved by the Corporation and any owner or occupier who fails within fourteen days after notice given to him to comply with the requirements of the Corporation shall be liable to a penalty not exceeding twenty shillings and to a daily penalty not exceeding five shillings. Provided that this section shall not authorise the Corporation to require the provision of a dustbin thereunder in any case in which a dustbin or ashpit in use at the passing of this Act is of suitable size and in proper order and condition. Regulation
dustbins.

75.—(1) Every new dwelling-house shall be provided with at least one living room with a floor area of not less than one hundred and thirty-two square feet and one bedroom with a floor area of not less than one hundred and ten square feet. Area of
habitable
rooms.

(2) No bedroom or other habitable room in any such dwelling-house shall have less floor area than sixty-four square feet.

(3) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

76. The Corporation may provide and maintain bins for sand and gravel or other materials and orderly bins or other receptacles for the collection and temporary deposit of street refuse and waste paper in upon or under the streets of such dimensions and in such positions as they may from time to time determine. Street
orderly bins.

77.—(1) The occupier of any building which is used for human habitation and in which there is or has been any person suffering from an infectious disease shall on the application of the medical officer at any time during the illness of such person or within six weeks from the occurrence of such illness furnish Information
to be fur-
nished to
medical
officer and
penalty for
furnishing

A.D. 1913. such information within his knowledge as the medical officer may reasonably require for the purpose of enabling measures to be taken to prevent the spread of the disease.
false information.

(2) Any occupier knowingly furnishing false information shall be liable on summary conviction to a penalty not exceeding forty shillings.

(3) In this section the expression "occupier" shall have the same meaning as in the Infectious Disease (Notification) Act 1889.

Compensation to persons ceasing employment. **78.** If any person shall at the request of the Corporation or of the medical officer stop his employment for the purpose of preventing the spread of infectious disease the Corporation may make compensation to him for any loss he may sustain by reason of such stoppage.

Penalty on occupiers refusing execution of Act. **79.** If the occupier of any house or part of a house shall prevent the owner thereof from carrying into effect any requirement of the Corporation under this Part of this Act then after notice of this provision shall have been given by the owner to the occupier any court of summary jurisdiction upon proof thereof may make an order in writing requiring the occupier to permit the owner to execute the works required by the Corporation to be done and if after the expiration of seven days from the service of such order the occupier shall continue to refuse to permit the owner to execute the said works he shall for every day during which he shall so continue to refuse be liable to a penalty not exceeding two pounds and during the continuance of his refusal the owner shall be discharged from any penalties to which he might otherwise have become liable by reason of his default in executing such works.

Public notice to be given of provisions of Part VIII. of Act. **80.**—(1) Public notice of the foregoing provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulating in the borough and by a notice affixed outside the town hall and by the distribution of handbills amongst persons affected or likely to be affected so far as such persons can be reasonably ascertained.

(2) Copies of the newspapers containing the advertisements shall be sufficient evidence that the provisions of this section have been complied with.

PART IX.

A.D. 1913.

ICE-CREAM DEALERS.

81.—(1) Any person being a manufacturer or vendor of or merchant or dealer in ice cream or other similar commodity who— For regulat-
ing manu-
facture and
sale of ice
cream.

(A) Causes or permits ice cream or any similar commodity or any materials used in the manufacture thereof to be manufactured sold or stored in any sleeping room or in any room cellar or place which is in a condition likely to render such commodity injurious to health or in which there is an inlet or opening to a drain; or

(B) In the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination; or

(C) Omits on the outbreak of any infectious disease amongst the persons employed in his business to give notice thereof to the medical officer;

shall be liable to a penalty not exceeding forty shillings.

(2) In the event of any inmate of any building (any part of which is used for the manufacture of ice cream or similar commodity) suffering from any infectious disease the medical officer may seize and destroy all ice cream or similar commodity or materials for the manufacture of the same in such building and the Corporation shall compensate the owner of the ice-cream commodity or materials so destroyed.

(3) Every dealer in ice cream or other similar commodity vending his wares from any cart barrow or other vehicle or stand shall have his name and address legibly painted or inscribed on such cart barrow or other vehicle or stand and any person who shall fail to comply with this subsection shall be liable to a penalty not exceeding forty shillings.

82.—(1) Any officer duly authorised by the Corporation in that behalf shall at all reasonable times have the same power of entry into and inspection of the premises of any manufacturer or vendor of or merchant or dealer in ice cream or other similar commodity for the purpose of inspecting such premises and the materials or commodities or articles of food therein as an officer of the Corporation would have under section 102 (Power of entry of local authority) of the Public Health Act 1875 in the cases therein mentioned. Inspection
of premises
of dealer in
ice cream.

A.D. 1913.

(2) Any person refusing entry into such premises as aforesaid or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings for each offence.

Public notice
to be given
of provisions
of Part IX.
of Act.

83.—(1) Public notice of the foregoing provisions of this Part of this Act shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulating in the borough and by a notice affixed outside the town hall and by the distribution of handbills amongst persons affected or likely to be affected so far as such persons can reasonably be ascertained.

(2) Copies of the newspapers containing the advertisements shall be sufficient evidence that the provisions of this section have been complied with.

PART X.

FINANCIAL PROVISIONS.

Power to
borrow.

84. The Corporation may from time to time borrow at interest—

- (A) For the purchase of land and easements and for the construction of the waterworks by this Act authorised on the security of the district fund and general district rate the sum of twenty-eight thousand five hundred pounds :
- (B) For a contribution towards the building of the National Library for Wales and for repayment to the borough fund of any part of such contribution already advanced thereout on the security of the borough fund and borough rate the sum of four thousand pounds :
- (c) For payment of the costs charges and expenses referred to in the section of this Act whereof the marginal note is “ Costs of Act ” on the security of the district fund and general district rate any sums not exceeding the amount ascertained as in that section provided :

Provided that the provisions of this section shall not limit the powers conferred upon the Corporation by the section of this Act whereof the marginal note is “ Power to use one form of mortgage for all purposes.”

Power to
borrow
additional
moneys with

85. The Corporation independently of any other borrowing power may from time to time with the sanction of the Local Government Board borrow such moneys as may be required for

any of the purposes of this Act on the securities herein-before respectively prescribed or if no securities are so prescribed on such securities as that Board may prescribe Provided that the provisions of this section shall not limit the powers conferred upon the Corporation by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes."

A.D. 1913

consent of
Local Gov-
ernment
Board.

86. In calculating the amount which the Corporation may borrow under the provisions of the Public Health Acts any sums which the Corporation may borrow or have borrowed for the construction of waterworks shall not be reckoned and the power of the Corporation of borrowing and re-borrowing for the purposes of this Act shall not be in any way restricted by any of the provisions or regulations of the Public Health Acts.

Certain
provisions
of Public
Health Act
not to apply.

87. The contribution by the Corporation of the sum of five thousand pounds to the building fund of the National Library for Wales at Aberystwyth is hereby sanctioned and subject to the provisions of the section of this Act whereof the marginal note is "Power to borrow" the same shall be chargeable to and payable out of the borough fund and borough rate.

Contribution
to building
fund of
National
Library.

88. The Corporation may raise all or any moneys which they are authorised to borrow under this Act by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others Provided that the provisions contained in the section of this Act whereof the marginal note is "Sinking fund" shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 of that Act.

Mode of rais-
ing money.

89. The provisions of sections 236 237 and 238 of the Public Health Act 1875 with respect to mortgages to be executed by a local authority shall (subject to the provisions of the section of this Act the marginal note of which is "Power to use one form of mortgage for all purposes") apply in the case of all mortgages granted by the Corporation under this Act as if they were with necessary modifications re-enacted in this Act.

Provisions as
to mortgages.

90. A person lending money to the Corporation shall not be bound to inquire as to the observance by them of any provisions of this Act or be bound to see to the application or be answerable for any loss misapplication or non-application of the money lent or of any part thereof.

Protection of
lenders from
inquiry.

A.D. 1913.

Repayment
of borrowed
money.

91. All moneys borrowed by the Corporation under the authority of this Act shall be paid off within the periods hereinafter respectively mentioned (in this Act referred to as "the prescribed period") (that is to say):—

As to moneys borrowed for the purposes (A) in the section of this Act whereof the marginal note is "Power to borrow" within forty years from the date or dates of borrowing the same;

As to moneys borrowed for the purpose (B) in the said section mentioned within thirty years from the thirty-first day of March one thousand nine hundred and thirteen;

As to moneys borrowed for the purpose (C) in the said section mentioned within five years from the passing of this Act;

and with respect to moneys borrowed by the Corporation under the authority of this Act with the consent of the Local Government Board within such period not exceeding sixty years as that Board may prescribe.

Mode of pay-
ment off of
money bor-
rowed.

92. The Corporation shall pay off all moneys borrowed by them on mortgage under the powers of this Act either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment or the first payment to the sinking fund shall be made within twelve months if by yearly repayments or within six months if by half-yearly repayments from the time of borrowing the sum in respect of which the payment is made.

Sinking
fund.

93.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed by virtue of this Act such sinking fund shall be formed or maintained either—

(A) By payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called "a non-accumulating sinking fund"; or

(B) By payment to the fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called "an accumulating sinking fund."

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in any statutory security the Corporation being at liberty from time to time to vary and transpose such investments. A.D. 1913.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5) (A) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Corporation :

(B) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application management or otherwise of any sinking fund under this Act shall be paid by the Corporation in addition to the payments provided for by this Act.

(7) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will probably not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such

A.D. 1913. — increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Corporation shall increase the payments to such extent as the Board may direct.

(8) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Act together with the accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to be made to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with the probable accumulations thereon (in the case of an accumulating sinking fund) will in the opinion of the Local Government Board be sufficient to repay the loan in respect of which it is formed within the prescribed period the Corporation may with the consent of that Board discontinue the annual payments to such sinking fund until the Local Government Board shall otherwise direct.

(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed, shall be applied to such purpose as the Corporation with the consent of the Local Government Board may determine.

Return
to Local
Government
Board as to
repayment
of debt.

94.—(1) The borough accountant shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised under any statutory borrowing power and not raised by the issue of Corporation stock and at any other time when the Local

Government Board may require such a return to be made transmit A.D. 1913.
to the Local Government Board a return in such form as may be
prescribed by that Board and if required by that Board verified
by statutory declaration of the borough accountant showing for the
year next preceding the making of such return or for such other
period as the Board may prescribe the amounts which have been
paid as instalments or annual payments and the amounts which
have been appropriated and the amounts which have been paid to
or invested or applied for the purpose of the sinking fund and the
description of the securities upon which any investment has been
made and the purposes to which any portion of the sinking fund
or investment or of the sums accumulated by way of compound
interest has been applied during the same period and the total
amount (if any) remaining invested at the end of the year and
in the event of his failing to make such a return the borough
accountant shall for each offence be liable to a penalty not
exceeding twenty pounds to be recovered by action on behalf of
the Crown in the High Court and notwithstanding the recovery
of such penalty the making of the return shall be enforceable by
writ of Mandamus to be obtained by the Local Government Board
out of the High Court.

(2) If it appears to the Local Government Board by that
return or otherwise that the Corporation have failed to pay any
instalment or annual payment required to be paid or to appro-
priate any sum required to be appropriated or to set aside any
sum required for any sinking fund (whether such instalment
or annual payment or sum is required by this Act or the Act
in pursuance of which the money is raised or by the Local
Government Board in virtue thereof to be paid appropriated
or set apart) or have applied any portion of any sinking fund to
any purposes other than those authorised the Local Government
Board may by order direct that the sum in such order mentioned
not exceeding double the amount in respect of which default
has been made shall be paid or applied as in such order
mentioned and any such order shall be enforceable by writ of
Mandamus to be obtained by the Local Government Board out
of the High Court.

95.—(1) Any mortgagee of the Corporation by virtue of this Act may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver. Appoint-
ment of re-
ceiver.

A.D. 1913.

The amount of arrears of principal due to such mortgagee or in the case of a joint application by two or more mortgagees to such mortgagees collectively to authorise the appointment of a receiver shall not be less than one thousand pounds in the whole.

(2) The application for the appointment of a receiver shall be made to the High Court.

Power to
re-borrow.

96.—(1) The Corporation shall have power—

- (A) to borrow for the purpose of paying off any moneys previously borrowed under any statutory borrowing power which are intended to be forthwith repaid; or
- (B) to borrow for the purpose of paying off the harbour overdraft referred to in paragraph (iii) of subsection (3) of article 18 of the Order of 1905 or any part thereof;
- (C) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under any statutory borrowing power and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

- (A) by instalments or annual payments; or
- (B) by means of a sinking fund; or
- (C) out of moneys derived from the sale of land; or
- (D) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Section 91 (Power to re-borrow) of the Act of 1872 section 32 A.D. 1913.
(Power to re-borrow) of the Act of 1874 and article IX. of the
Order of 1897 are hereby repealed.

97.—(1) Where the Corporation are authorised by any statutory borrowing power to raise money for any purpose they may instead of exercising such borrowing power by the issue of any fresh security in respect thereof exercise the said power and raise the said money either wholly or partially by using for such purpose so much of any money for the time being forming part of a sinking fund (other than the sinking fund for the redemption of the harbour annuities) as shall be available for the repayment of—

Power to use sinking fund instead of borrowing.

(A) a loan which is secured by a charge on the same rate fund or revenue as would be specifically chargeable as the security for the repayment of a loan under the statutory borrowing power if the same were raised by the issue of a fresh security and which is not shown by the deed to be raised in exercise of a particular borrowing power specified therein; or

(B) moneys borrowed and charged upon all the revenues of the Corporation in manner provided by the section of this Act whereof the marginal note is "Power to use one form of mortgage for all purposes" and not shown by the deed to be raised in exercise of a particular borrowing power specified therein.

(2) The Corporation when exercising the powers conferred on them by this section shall—

(A) withdraw from the sinking fund a sum equal to the amount of the statutory borrowing power proposed to be exercised by the user of moneys from such sinking fund;

(B) credit such sinking fund with the repayment of an amount of the principal moneys for the repayment of which the fund is established equal to the sum withdrawn from the sinking fund and thereupon the amount so credited shall be deemed to be principal moneys discharged by application of the sinking fund;

(C) debit the account of the statutory borrowing power proposed to be exercised with an amount of the principal moneys equal to the sum withdrawn from

A.D. 1913.

such sinking fund and thereupon the statutory borrowing power shall be deemed to have been exercised as fully as if the said amount had been raised by the issue of a fresh security and the provisions of any enactment as to the repayment and re-borrowing of sums raised under the statutory borrowing power shall apply thereto accordingly.

(3) The provisions of this section shall not apply to any sinking fund formed under the Local Loans Act 1875.

(4) The Corporation shall furnish all such information (if any) to the Local Government Board with regard to the exercise of the powers contained in this section as that Board shall require.

Power to
use one form
of mortgage
for all pur-
poses.

98.—(1) Where the Corporation have for the time being any statutory borrowing power they may for the purpose of exercising such power grant mortgages in pursuance of the provisions of this section.

(2) Every mortgage granted under this section shall be by deed truly stating the consideration and the time or the mode of ascertaining the time and place of payment and shall be sealed with the common seal of the Corporation and may be made in the form contained in the Second Schedule to this Act or to the like effect.

(3) All mortgages granted under this section shall rank equally without any priority or preference by reason of any precedence in the date of any statutory borrowing power or in the date of the mortgages or on any other ground whatsoever.

(4) The repayment of all principal sums and the payment of interest thereon secured by mortgages granted under this section shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Corporation.

(5) Nothing in this section contained shall alter or affect the obligations of the Corporation to provide for the repayment of the principal sums and interest secured by mortgages granted under this section and all such sums and interest shall be paid within the periods by the means and out of the funds rates or revenues within by and out of which they would have been payable respectively if this section had not been enacted.

(6) There shall be kept at the office of the Corporation a register of the mortgages granted under this section and within fourteen days after the date of any such mortgage an entry shall

be made in the register of the number and date thereof and of the names and descriptions of the parties thereto as stated in the deed. Every such register shall be open to public inspection during office hours at the said office without fee or reward and the town clerk or other person having the custody of the same and refusing to allow such inspection shall be liable to a penalty not exceeding five pounds. A.D. 1913.

(7) Any mortgagee or other person entitled to any mortgage granted under this section may transfer his estate and interest therein to any other person by deed duly stamped truly stating the consideration and such transfer may be according to the form contained in the Second Schedule to this Act or to the like effect.

(8) There shall be kept at the town clerk's office a register of the transfer of mortgages granted under this section and within thirty days after the date of every deed of transfer if executed within the United Kingdom or within thirty days after its arrival in the United Kingdom if executed elsewhere the same shall be produced to the town clerk who shall on payment of a sum not exceeding five shillings cause an entry to be made in such register of its date and of the names and descriptions of the parties thereto as stated in the deed of transfer and until such entry is made the Corporation shall not be in any manner responsible to the transferee.

(9) On the registration of any transfer the transferee his executors or administrators shall be entitled to the full benefit of the original mortgage and the principal and interest secured thereby and any transferee may in like manner transfer his estate and interest in any such mortgage and no person except the last transferee his executors or administrators shall be entitled to release or discharge any such mortgage or any money secured thereby.

(10) If the town clerk wilfully neglects or refuses to make in the register any entry by this section required to be made he shall be liable to a penalty not exceeding twenty pounds.

99.—(1) Notwithstanding anything contained in any Act Order or sanction authorising the borrowing or raising by the Corporation of the several loans mentioned or referred to in the Third Schedule to this Act the periods within which the said loans shall be repaid or provided for by sinking fund shall be the periods set opposite such several loans in the eleventh

Uniform period and new sinking fund for repayment of scheduled loans.

A.D. 1913. — column of the said schedule Provided that nothing in this subsection shall be construed to compel the holder of any mortgage or other security granted before the passing of this Act to accept payment of the principal due on his security otherwise than at the time or times originally fixed or otherwise agreed in that behalf and the Corporation may continue on loan the sums of money secured by any such mortgage or other security until the time originally fixed or otherwise agreed for the repayment thereof.

(2) For the purpose of providing for the repayment of all the said loans (other than the harbour annuities) the Corporation shall establish and maintain a new sinking fund in manner provided by the section of this Act whereof the marginal note is "Sinking fund" in substitution for the several sinking funds (other than the sinking fund for the redemption of the harbour annuities) at present existing in respect of the said loans Provided that for the purposes of the application of the said section to the said new sinking fund "the prescribed period" shall be deemed to be the said periods specified in the eleventh column of the Third Schedule to this Act and the sums to be accumulated by means of the said new sinking fund shall be such as when added to the amounts now in the said existing sinking funds will be sufficient to provide for repayment of the said loans at the expiration of the said prescribed period.

(3) The Corporation shall forthwith transfer to the account of the said new sinking fund the amounts now in the said existing sinking funds.

Redemption
of harbour
annuities.

100.—(1) The Corporation may at any time after the thirty-first March one thousand nine hundred and forty-five require the persons entitled to any annuities provided for under section 11 (Terms and conditions of vesting) of the Act of 1874 and for the time being outstanding to accept redemption of any such annuities on payment of the then fair value of the annuity or annuities so redeemed and the amount of such value shall if not agreed be settled by arbitration in accordance with the provisions of the Arbitration Act 1889 except that the arbitrator shall be nominated by the Local Government Board on the application of either the Corporation or the annuitant.

(2) The Corporation may with the sanction of the Local Government Board borrow at interest on the security of the revenues of their harbour undertaking and the district fund and

general district rate such part or parts of the amounts payable according to agreement or to the award to be made by the arbitrator as the sinking fund then applicable for the purpose shall be insufficient to meet together with all costs charges and expenses payable by the Corporation in respect or arising out of such arbitration or the redemption of such annuities. A.D. 1913.

(3) The Corporation may with the like sanction and on the like security borrow at interest any sum or sums from time to time required for redeeming any annuities by agreement in pursuance of the provisions of section 28 (Power to redeem annuities by agreement) of the Act of 1874.

(4) Any loan sanctioned by the Local Government Board under this section shall be repaid within such period not exceeding sixty years as that Board may prescribe.

(5) The annuities sinking fund provided for under article 16 of the Order of 1905 shall be applicable to the redemption of annuities under subsection (1) of this section in addition to the purposes to which the same is applicable under subsection (3) of the said article 16.

101. The Order of 1905 is hereby amended in the following respects (that is to say):— Amendment
of Harbour
Order of
1905.

- (1) As to article 12 (Application of rates &c.) by reading the same as if the following paragraph had from the commencement of the Order been substituted in place of paragraph (IX.):—“(IX.) In payment off in the “ year ending the thirty-first day of March one “ thousand nine hundred and ten and in each of the “ ten then next succeeding years of one equal eleventh “ part of the sum of eight thousand nine hundred “ and ninety-seven pounds sixteen shillings and seven- “ pence (which represents the present overdraft and “ liability of the Corporation in respect of past “ deficiencies of the revenue derived from the harbour “ undertaking in the Act of 1874 mentioned) and “ in payment of the interest payable on so much of “ the said sum of eight thousand nine hundred and “ ninety-seven pounds sixteen shillings and seven- “ pence as for the time being remains owing and “ unpaid by the Corporation ”:

- (2) As to article 15 (Deficiency of revenue and borough fund to be a charge on district rate &c.) by striking

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out the words "and the annual sum by section 18
" of this Order required to be appropriated and set
" apart " :

- (3) As to article 16 (Sinking fund to meet annuities) by inserting after the words "section 12 of this Order" the words "or out of the district fund and general district rate" :
- (4) As to article 17 (Sinking fund to meet moneys borrowed under this Order) by inserting in subsection (1) after the words "section 12 of this Order" the words "or out of the district fund and general district rate" :
- (5) By omitting the whole of article 18 (Appropriation out of borough fund and general district rate) :
- (6) By omitting the whole of article 19 (Deficiency to be provided for by general district rate).

Application
of money
borrowed.

102. All money borrowed under the provisions of this Act shall be appropriated to purposes for which it is authorised to be borrowed and shall be expended exclusively on works or objects on which capital may properly be expended.

Application
of moneys
arising from
sale of lands
&c.

103. The Corporation shall apply all moneys received by them in respect of any sales exchanges or disposition of lands or premises or any interest therein or by way of fine or premium on any lease of lands or premises made under the authority of this Act and any other moneys received by the Corporation on capital account under this Act in or towards paying off any moneys borrowed and for the time being owing by the Corporation under this Act to which such capital moneys would be properly applicable or if there shall be no moneys owing under this Act such proceeds shall be applied in or towards paying off any other moneys for the time being owing by the Corporation on capital account Provided that such moneys received shall not be applicable to the payment of instalments appropriations or annual repayments or to payments into sinking fund except to such extent and upon such terms as may be approved by the Local Government Board.

Corporation
not to regard
trusts.

104. The Corporation shall not be bound to see to the execution of any trust whether express or implied or constructive to which any loan or security for loan borrowed given or issued by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of

mortgages shall from time to time be a sufficient discharge to the Corporation in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Corporation have had express or implied notice of any such trust or of any charge or incumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register and the Corporation shall not be bound to see to the application of the money paid on any such receipt or be answerable or accountable for any loss misapplication or non-application of any such money.

A.D. 1913.

105. The Corporation may declare any expenses incurred by them under the provisions of this Act which are recoverable from the owner or owners of any premises to be private improvement expenses and thenceforth those expenses may be recovered and shall be charged upon the premises in respect of which they were incurred in accordance with the provisions of section 257 of the Public Health Act 1875.

Expenses
may be
declared
private im-
provement
expenses.

106.—(1) From and after the thirty-first day of March nineteen hundred and fifteen sections 25 26 and 27 of the Municipal Corporations Act 1882 and section 246 of the Public Health Act 1875 shall cease to apply to any accounts of the Corporation or of the treasurer of the borough or of the officers of the Corporation but the accounts of the Corporation and of the treasurer of the borough and the officers of the Corporation under any public or private Act of Parliament or otherwise relating to matters dealt with by the Corporation in any capacity and including the accounts of any joint committee and of the officers of any joint committee appointed by the Corporation with the council of any county or of any other borough or with a district council or a parish council shall be audited by a district auditor appointed by the Local Government Board in like manner as accounts of an urban authority and their officers are audited under sections 247 and 250 of the Public Health Act 1875 and those sections and all enactments amending them or applying to audit by district auditors including the enactments imposing penalties and providing for the recovery of sums as well as all enactments relating to matters incidental to or consequential upon any such accounts or audit shall apply in like manner as if so far as they relate to an audit of the accounts of an urban authority and the officers of that authority they were herein re-enacted with the necessary modifications and accordingly all burgesses of the borough and all ratepayers and owners of property in the borough shall have

Audit of
accounts.

A.D. 1913. the like rights and there shall be the same appeal as in the case of that audit. Provided that for the purposes of this section the First Schedule to the District Auditors Act 1879 shall be modified in the manner described in the Second Schedule to the Local Government Act 1888.

(2) Nothing in subsection (1) of this section shall apply to the audit of the accounts of the Corporation for the financial years ending the thirty-first day of March one thousand nine hundred and fourteen and the thirty-first day of March one thousand nine hundred and fifteen and these accounts shall be audited by the elective auditors for the borough elected in the manner provided by sections 25 26 and 27 of the Municipal Corporations Act 1882 as if this Act had not been passed.

Power to
apply funds
towards
expenses of
deputations
conferences
&c.

107. The Corporation may out of the borough fund---

- (A) Pay reasonable subscriptions whether annually or otherwise to the funds of any association of municipal corporations or other local authorities or their officers formed for the purpose of consultation as to their common interests and the discussion of matters relating to local government and any reasonable expenses of the attendance of any members or officers of the Corporation not exceeding in any case four at conferences or meetings of the said associations or any of them and of purchasing reports and contributing towards the expenses of any such conferences or meetings:
- (B) Pay the reasonable expenses of the Corporation in providing public entertainments on the occasion of public ceremony or rejoicing and in the reception and entertainment of distinguished persons residing in or visiting the borough:
- (C) From time to time pay the reasonable expenses of a visit by members of the Corporation or of a committee of the Corporation to the waterworks at Plynlimmon or elsewhere:
- (D) Pay reasonable subscriptions not exceeding in the whole one hundred pounds in any one year to the funds of institutions (other than hospitals) established and maintained in the borough for the nursing of the poor for the care of the feeble-minded or for alleviating the condition of invalid children of the poorer classes:

(E) Pay reasonable subscriptions not exceeding in the whole twenty guineas in any one year in aid of local units of the territorial forces rifle clubs and other institutions established in or connected with the borough for the purpose of rendering national or public services :

A.D. 1913.

Provided always that the Corporation shall not levy any borough rate for the purposes of this section.

108. The Corporation may advertise the advantages and amenities of the borough as a health resort or watering place by handbooks or leaflets or by the insertion of advertisements in newspapers not published within the borough or otherwise with the exception of posters and placards as they may see fit and may in lieu of carrying to the credit of the borough fund the profits (if any) received by them in respect of the year ending thirty-first March one thousand nine hundred and fourteen or any subsequent year from the letting of chairs apply such profits for the purpose of defraying the expenses incurred by them under this section and the Corporation may also apply any surplus moneys out of the borough fund for such purpose after paying all expenses payable thereout Provided that the amount to be applied out of the borough fund under this section and the section of this Act the marginal note of which is "Bands and concerts" shall not exceed one third of the gross annual revenue of the borough fund arising from the corporate estates of the Corporation Provided that the Corporation shall not levy any borough rate for the purposes of this section.

Corporation
may adver-
tise borough.

109. The Corporation may from time to time appoint and pay one or more persons being members of the Institute of Chartered Accountants in England and Wales or of the Incorporated Society of Accountants and Auditors to act as auditor or auditors of the accounts of the Corporation.

Corporation
may appoint
auditors.

110. The provisions of section 131 (Power of local authority to provide hospitals) of the Public Health Act 1875 shall be extended so as to enable the Corporation to subscribe to any hospital infirmary nursing institution or other institution of a similar character any sum not exceeding in the whole one hundred pounds per annum.

Power to
Corporation
to subscribe
to hospitals.

111. All expenses incurred by the Corporation in carrying into execution the provisions of this Act (except such of those expenses as are to be paid out of borrowed moneys or are

Expenses of
execution of
Act.

A.D. 1913. otherwise provided for) shall be paid out of the district fund and general district rate. Provided that when any expenditure is incurred or any money is received for purposes common to two or more accounts the Corporation may apportion the same between those accounts in such manner as they deem equitable.

PART XI.

MISCELLANEOUS.

Limit of
library rate
extended.

112. For the better and more effectually carrying into execution the powers and duties of the Corporation under the Public Libraries Acts 1892 to 1901 those Acts shall be read and have effect as if the limit thereby imposed on the amount authorised to be levied by or added to a rate were extended so as not to exceed the sum of twopence in the pound.

Street
collections.

113. The Corporation may for the purpose of preventing obstruction in the streets with the approval of the Secretary of State make byelaws with respect to the places where and the manner in which persons may collect money for charitable or other purposes within the following streets namely Marine Terrace Victoria Terrace South Terrace Terrace Road Great Dock Gate Street North Parade Pier Street Queen's Road Alexandra Road and Castle Grounds. Any person who shall contravene any such byelaws shall be liable to a penalty not exceeding forty shillings.

Evidence of
appoint-
ments &c.

114. Where in any legal proceedings taken by or on behalf of or against the Corporation or any officer servant solicitor or agent of the Corporation or of any committee of the Council under this Act or under any general or local Act for the time being in force in the borough it becomes necessary to prove the appointment or authority of any officer servant solicitor or agent of the Corporation or of any committee of the Council or to prove any resolution or order of the Council or any resolution order or report of any committee of the Council a certificate of such appointment authority resolution order or report purporting to be authenticated by the signature of the mayor or the town clerk shall be *primâ facie* evidence of such appointment authority resolution order or report without further proof of the holding of any meeting or the production of any minute book or other record or document.

115. The provisions of sections 182 to 185 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to all byelaws made by the Corporation under the powers of this Act except that in the case of byelaws made under the provisions of the section of this Act the marginal note of which is "Street collections" the confirming authority shall be a Secretary of State. A.D. 1913.
Confirmation
of byelaws.

116. Proceedings for the recovery of any demand made under the authority of this Act or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in the county court having otherwise jurisdiction in the matter Provided that the demand does not exceed the amount recoverable in that court in a personal action. Recovery of
demands
in county
court.

117. Save as otherwise by this Act expressly provided all offences against this Act and all penalties forfeitures costs and expenses imposed or recoverable under this Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts. Recovery of
penalties &c.

118. Any person deeming himself aggrieved by any order judgment determination or requirement or the withholding of any certificate licence or consent or approval of or by the Corporation or of or by any officer of the Corporation or by any conviction or order by a court of summary jurisdiction under any provision of this Act may if no other mode of appeal is provided by this Act appeal to the next practicable court of quarter sessions under and according to the provisions of the Summary Jurisdiction Acts. Appeal

119.—(1) Where any notice or demand under this Act or under any local Act Provisional Order or byelaw for the time being in force within the borough requires authentication by the Corporation the signature of the town clerk or other duly authorised officer of the Corporation shall be sufficient authentication. Authenti-
cation and
service of
notices &c.

(2) Notices demands orders and other documents required or authorised to be served under this Act or under any local Act Provisional Order or byelaw for the time being in force within the borough may be served in the same manner as

A.D. 1913. notices under the Public Health Act 1875 are by section 267 of that Act authorised to be served. Provided that in the case of any company any such notice demand order or document shall be delivered or sent by post addressed to the secretary of the company at their registered office or at their principal office or place of business.

(3) Section 107 (Authentication of notices) of the Act of 1872 is hereby repealed.

Application
of penalties.

120. All penalties recovered under this Act or under any byelaw thereunder shall except in the case of penalties recovered against the Corporation be paid to the borough treasurer or other officer of the Corporation duly authorised and be by him carried to the credit of the borough fund.

Persons
acting in
execution of
Act not to be
personally
liable.

121. No matter or thing done or contract entered into by the Corporation nor any matter or thing done by the town clerk or by any member or officer of the Corporation or any person whomsoever acting under the direction of the Corporation shall if the matter or thing be done or the contract be entered into bonâ fide for the purpose of executing this Act subject them or any of them personally to any action liability claim or demand whatsoever and any expense incurred by the Corporation or town clerk member officer or person acting as last aforesaid shall be borne and repaid out of any of the funds at the disposal of the Corporation.

As to breach
of conditions
of consent of
Corporation.

122. Where under this Act or under any general or local Act for the time being in force in the borough the Corporation give their consent to the execution of any work or the doing of any act or thing subject to any terms or conditions which they are authorised to impose any breach of any such terms or conditions shall be deemed as regards liability to a penalty and other consequences equivalent to the execution of the work or the doing of the act or thing without the required consent.

Inquiries
by Local
Government
Board.

123.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Act and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as inspectors of the Local Government Board have for the purposes of inquiries directed by that Board under the Public Health Act 1875.

(2) The Corporation shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expenses of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector. A.D. 1913.

124. Whenever the Corporation under any enactment or byelaw for the time being in force within the borough execute re-execute or alter any work act or thing in default of the owner or occupier and in the absence of misconduct or negligence on the part of the Corporation or of any contractor or person employed by them are required to pay any damages penalties costs charges and expenses for or consequent upon the executing re-executing or altering such work act or thing the amount thereof when paid shall be deemed to be part of the expense payable by such owner or occupier and shall be recoverable accordingly, In executing works for owner Corporation not liable for damages save in case of negligence.

125. Save as herein expressly provided all informations and complaints under or for the breach of any of the provisions of this Act or of any byelaws made thereunder may be laid by an officer of the Corporation duly authorised in that behalf or by the town clerk. Informations by whom to be laid.

126. All powers rights and remedies given to the Corporation by this Act shall (except where otherwise expressly provided) be deemed to be in addition to and not in derogation of any other powers rights or remedies conferred upon them or on any committee appointed by them by Act of Parliament law or custom and the Corporation or such Committee as the case may be may exercise such other powers and be entitled to such other rights and remedies as if this Act had not been passed Provided that no person shall incur more than one penalty (other than a daily penalty for a continuing offence) for the commission of the same offence. Powers of Act cumulative.

127. Nothing in this Act shall protect any person from being proceeded against by way of indictment in respect of any matter by this Act made punishable on summary proceedings or shall relieve any person in respect of any such matter from any penal or other consequence to which he would have been liable if such matter had not been made punishable by this Act Provided that nothing in this Act shall make a person liable to be punished more than once for the same offence. Saving of indictments.

A.D. 1913.

Judges not
disqualified.

128. A judge of any court or a justice shall not be disqualified from acting in the execution of this Act by reason of his being liable to any rate.

Crown
rights.

129. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Corporation to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Costs of Act.

130. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act (including the costs charges and expenses preliminary to and of and connected with the compliance with the provisions of the Borough Funds Acts 1872 and 1903 with respect to the Bill for this Act) or otherwise in relation thereto as taxed and ascertained by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the district fund and general district rate or out of moneys borrowed under the powers of this Act.

The SCHEDULES referred to in the foregoing Act. A.D. 1913.

THE FIRST SCHEDULE.

ACTS AND ORDERS IN FORCE IN THE BOROUGH.

PART I.—LOCAL ACTS AND ORDERS.

Session and Chapter of Act or Confirming Act.	Title.
5 & 6 Will. 4. c. xlvi. -	An Act for improving and regulating the town of Aberystwyth in the county of Cardigan and for supplying the inhabitants thereof with water.
31 & 32 Vict. c. cliii. -	The Aberystwyth Order confirmed by the Local Government Act 1868 (No. 6).
35 & 36 Vict. c. xxx. -	Aberystwyth Improvement and Water Act 1872.
37 Vict. c. i. -	The Borough of Aberystwyth Order confirmed by the Local Government Board's Provisional Orders Confirmation Act 1874.
37 & 38 Vict. c. cxx. -	The Aberystwyth Corporation Act 1874.
51 & 52 Vict. c. cxxxiii. -	The Borough of Aberystwyth Order confirmed by the Local Government Board's Provisional Orders Confirmation (No. 8) Act 1888.
56 & 57 Vict. c. cx. -	The Order confirmed by the Local Government Board's Provisional Order Confirmation (No. 3) Act 1893 so far as the same affects the borough of Aberystwyth.
60 & 61 Vict. c. cxliii. -	The Aberystwyth Order 1897 confirmed by the Local Government Board's Provisional Orders Confirmation (No. 16) Act 1897.
5 Edw. 7. c. cxxii. -	The Aberystwyth Harbour Order 1905 confirmed by the Pier and Harbour Order Confirmation (No. 3) Act 1905.

PART II.—ADOPTIVE ACTS.

The Infectious Disease Prevention Act 1890.
The Public Health Acts Amendment Act 1890.
The Private Street Works Act 1892.
The Public Libraries Act 1892.
The Notification of Births Act 1907.

A.D. 1913.

THE SECOND SCHEDULE.

FORM OF MORTGAGE.

BOROUGH OF ABERYSTWYTH.

By virtue of the Aberystwyth Corporation Act 1913 and of any other powers in that behalf them enabling the mayor aldermen and burgesses of the borough of Aberystwyth (herein-after called "the Corporation") in consideration of the sum of pounds paid to the borough treasurer by (herein-after called "the mortgagee") do hereby grant and assign unto the mortgagee (his) executors administrators and assigns such proportion of the revenues of the Corporation in the said Act defined as the said sum of £ so paid doth or shall bear to the whole sum which is or shall be charged on the said revenues To hold unto the mortgagee (his) executors administrators and assigns from the day of the date of these presents until the said sum of shall be fully paid and satisfied with interest for the same at the rate of per centum per annum from the day of one thousand nine hundred and until payment of the said principal sum such interest to be paid half-yearly on the thirty-first day of March and the thirtieth day of September in each year And it is hereby agreed that the said principal sum of pounds shall be repaid at the office of the borough treasurer on the day of one thousand nine hundred and :

Provided always and it is hereby agreed and declared that the before-mentioned time for repayment may be extended to such subsequent day or days and upon any such extension the before-mentioned rate of interest may be altered to such other rate or rates of interest as shall from time to time be mentioned and specified in an endorsement to be made hereon under the hands of the mayor and town clerk for the time being respectively and that upon any such endorsement being made whether relating to extension of time only or to extension of time with alteration of rate of interest the provisions thereof shall be incorporated herewith and shall operate and take effect as though they had been originally inserted herein.

In witness whereof the Corporation have caused their common seal to be hereunto affixed this day of one thousand nine hundred and .

THE ENDORSEMENT WITHIN REFERRED TO.

A.D. 1913.

The within-named consenting the within-mentioned
time for repayment of the within-mentioned principal sum of
 is hereby extended to the day of
 one thousand nine hundred and (and the
interest to be paid thereon on and from the day of
 one thousand nine hundred and is hereby
declared to be at the rate of per centum per annum).

Dated this day of one thousand nine hundred
and

FORM OF TRANSFER OF MORTGAGE.

I (the within-named of) in considera-
tion of the sum of pounds paid to me by of
 (herein-after called "the transferee") do hereby
transfer to the transferee (his) executors administrators and assigns
(the within-written security) (the mortgage number of the
revenues of the Aberystwyth Corporation bearing date the day
of) and all my right and interest under the same
subject to the several conditions on which I hold the same at the time
of the execution hereof and I the transferee for myself my executors
administrators and assigns do hereby agree to take the said mortgage
security subject to the same conditions.

Dated this day of one thousand nine hundred
and

THE THIRD SCHEDULE.

SCHEDULE OF LOANS.

BOROUGH OF ABERYSTWYTH.

1. Purpose of Loan.	2. Authority.	3. Original Term and Years.	4. Amount sanctioned.	5. Amount of Loan raised.	6. Amount paid into Sinking Fund.	7. Amount repaid.	8. Amount in Sinking Fund at 31st March 1913.	9. Balance of Loans unprovided for at 31st March 1913.	10. Term unex- pired in Years.	11. Equated Period.
<i>Borough Fund.</i>										
Improvements -	L.G.B. Sanction 20th July 1905	30	£ 325 0 0	£ 325 0 0	£ 55 17 3	—	£ 55 17 3	£ 269 2 9	23	23
Improvements -	L.G.B. Sanction 9th July 1906	27	£ 1,087 0 0	£ 1,087 0 0	£ 150 14 1	—	£ 150 14 1	£ 936 5 11	22	
<i>General District Fund.</i>										
Paving and drainage sewerage and markets.	L.G.B. Provisional Orders Con- firmation (No. 16) Act 1897.	56	£ 12,204 0 0	£ 12,204 0 0	£ 3,549 18 5	—	£ 3,549 18 5	£ 8,654 1 7	40	31
Street improvements	L.G.B. Sanction 20th July 1905	60	£ 175 0 0	£ 175 0 0	£ 9 14 2	—	£ 9 14 2	£ 165 5 10	53	
Public conveniences	L.G.B. Sanction 17th Nov. 1904	27	£ 1,275 0 0	£ 1,275 0 0	£ 253 16 3	—	£ 253 16 3	£ 1,021 3 9	20	
Paving and construc- tion of slipway.	L.G.B. Sanction 8th April 1904	20	£ 378 0 0	£ 378 0 0	£ 129 5 3	—	£ 129 5 3	£ 248 14 9	12	
Promenade extension	L.G.B. Sanction 9th July 1906	26	£ 2,809 0 0	£ 2,809 0 0	£ 409 19 10	—	£ 409 19 10	£ 2,399 0 2	21	
Street improvements	L.G.B. Sanction 1st Nov. 1904	20	£ 999 0 0	£ 999 0 0	£ 295 3 1	—	£ 295 3 1	£ 703 16 11	13	31
Street improvements	L.G.B. Sanction 9th Aug. 1900	19	£ 3,046 0 0	£ 3,046 0 0	—	1,894 8 11	—	£ 1,151 11 1	8½	
Promenade extension and sewers.	L.G.B. Sanction 30th Aug. 1900	28	£ 15,623 0 0	£ 15,623 0 0	—	4,523 16 2	—	£ 11,099 3 10	17	
Housing of working classes.	L.G.B. Sanction 7th Nov. 1904	57	£ 3,150 0 0	£ 3,150 0 0	£ 321 16 10	—	£ 321 16 10	£ 2,828 3 2	48	26
Housing of working classes.	L.G.B. Sanction 25th March 1904.	60	£ 1,100 0 0	£ 1,100 0 0	£ 61 1 3	—	£ 61 1 3	£ 1,038 18 9	53	
Housing of working classes.	L.G.B. Sanction 28th Nov. 1908	60	£ 2,880 0 0	£ 2,880 0 0	£ 65 2 7	—	£ 65 2 7	£ 2,814 17 5	57	
<i>Harbour Fund.</i>										
Harbour -	Aberystwyth Corporation Act 1874.	50	£ 10,000 0 0	£ 9,373 0 0	£ 2,953 6 10	£ 2,573 0 0	£ 2,953 6 10	£ 3,846 13 2	19	26
Harbour and costs of Act.	Aberystwyth Harbour Order 1905.	40	£ 13,500 0 0	£ 13,500 0 0	—	£ 1,023 19 1	—	£ 12,476 0 11	33	
Harbour (Annuities)	Aberystwyth Corporation Act 1874 and Harbour Order 1905.	40	£ 9,746 17 6	£ 9,746 17 6	£ 2,205 14 9	£ 1,640 12 6	£ 580 14 9	£ 7,525 10 3	32	
Harbour -	Aberystwyth Harbour Order 1905.	11	£ 8,997 0 0	£ 8,997 0 0	—	£ 3,273 17 1	—	£ 5,723 2 11	7	
<i>Waterworks Fund.</i>										
Waterworks -	L.G.B. Provisional Orders Con- firmation (No. 16) Act 1897.	56	£ 11,470 0 0	£ 11,470 0 0	£ 2,940 7 8	—	£ 2,940 7 8	£ 8,529 12 4	41	35
Waterworks -	L.G.B. Sanction 19th Sept. 1910	30	£ 7,275 0 0	£ 7,275 0 0	£ 165 14 2	—	£ 165 14 2	£ 7,109 5 10	29	
			£ 106,039 17 6	£ 105,412 17 6		£ 14,929 13 9	£ 11,942 12 5	£ 78,540 11 4		

THE FOURTH SCHEDULE.

A.D. 1913.

SECTIONS OF THE ACT OF 1835 NOT TO BE REPEALED.

Section 25 And be it enacted that all the present and future squares roads streets lanes ways and other public passages and places as well carriageways as footways within the aforesaid liberties of the said town and the ground and soil thereof the stone beach in front of the Marine Terrace and the ground and soil thereof and the pavements stones gravel and all the other materials of in or belonging to the same respectively and all the present and future public drains sewers gutters grates and sinks within the same liberties and all the public lamps lamp irons and posts and all other articles materials and things already made erected set up or provided at public expense or to be made erected set up or provided under this Act and all buildings and works articles materials and things to be erected set up made or provided by virtue of this Act shall belong to and be the property of and the same are hereby absolutely vested in the Commissioners for executing this Act and the said Commissioners shall and may cause to be brought any action or direct the preferring of any bill of indictment information or complaint (as the case may require) against any person who shall steal take or carry away or detain spoil injure divert disturb annoy damage or destroy the said several works articles matters things and other property hereby vested in them the said Commissioners as aforesaid or any of them or any part thereof and in any such action or bill of indictment information or complaint respectively it shall be sufficient to state generally that the works articles matter thing or other property for or on account or in respect of which such action shall be brought or bill of indictment information or complaint preferred is the property of "The Commissioners for regulating and improving the town of Aberystwyth" and the said Commissioners shall have full power and authority from time to time to sell and dispose of all or any of the said works articles matters things and other property or any part of the same respectively which shall not be wanted for the purposes of this Act to such person at such time and in such manner as they shall think proper.

Pavements
&c. vested
in Commis-
sioners.

Section 26 And be it enacted that if the said Commissioners shall at any time hereafter deem it expedient to establish a manufactory or manufactories for lighting the said streets squares highways lanes roads paths passages and places within the said liberties of the said town of Aberystwyth with gas or any of them then it shall be lawful for the same Commissioners with the consent in writing of one third

Power to
make gas-
works.

A.D. 1913. — at least of such of the said Commissioners for the time being as shall be then duly qualified to be such Commissioners and as shall then have actually taken or made and subscribed the oaths or affirmations by this Act required to be taken or made and subscribed by the said Commissioners (such consent in writing to be given or obtained either at a meeting of the same Commissioners or at any other time) and with the consent and approbation of one general meeting of the inhabitants of the said town within the aforesaid liberties to set up and establish a manufactory or manufactories of gas with all necessary gasometers boilers retorts works and apparatus requisite for the same and to purchase from any person or persons body or bodies politic or corporate who shall be willing to sell the same any buildings lands tenements or hereditaments whatsoever within the aforesaid liberties of the said town of Aberystwyth or the environs thereof for the purpose of erecting and making suitable and necessary erections works and apparatus for the manufacturing or preparing of gas for the purpose of lighting the said streets squares highways roads lanes passages and places within the liberties aforesaid or any of them and that the said Commissioners shall and may manufacture and produce and contract with any person or persons bodies corporate or politic for the manufacture and production of inflammable air carburetted hydrogen oil gas coal gas coke oil tar pitch asphaltum ammoniacal liquor and essential oil and for lighting with gas the said town within the liberties aforesaid and shall and may purchase and make contracts for purchasing materials goods and chattels for those purposes and also shall and may from time to time make contracts with any trustees or other persons or body or bodies politic corporate or collegiate who may be willing to contract or agree with the said Commissioners for lighting any bridges churches chapels public buildings manufactories warehouses shops or private houses or buildings of whatever denomination the same may be or any of them within the aforesaid liberties of the said town of Aberystwyth and to sell and dispose of such coke oil tar pitch asphaltum ammoniacal liquor and essential oil and other products as aforesaid and to make enforce rescind compound or compromise all contracts or bargains touching or concerning the same several purposes.

Power to
make water-
works.

Section 27 And be it enacted that it shall be lawful for the said Commissioners by their officers agents servants workmen and assistants to make complete maintain and keep waterworks reservoirs aqueducts water-wheels steam engines and other engines pipes and other conveniences in through or upon the lands and grounds mentioned and described in the schedule to this Act annexed or any of them for supplying the said town of Aberystwyth with water and the said Commissioners are hereby fully empowered by their officers agents workmen or servants to supply the said intended waterworks and the said reservoirs and aqueducts whilst the same shall be making

and at all times for ever after the same shall be made with water and to make such and so many feeders tunnels drains channels and shafts and to make erect and set up so many stopgates locks sluices weirs engines steam engines and other machines for supplying the said waterworks and the said reservoirs and aqueducts with water and for any other purposes for the making maintaining and using such waterworks as they the said Commissioners shall from time to time think proper and expedient and for the better effecting the purposes aforesaid and also afterwards for inspecting and repairing the works aforesaid the said Commissioners and their officers workmen and servants are hereby empowered to go enter and pass in upon over and under and through the lands and grounds waters highways roads passages and all other lands and places of or belonging to any person or persons bodies politic or corporate whatsoever mentioned and specified in the schedule to this Act annexed and in the plan and book of reference herein-after mentioned and to set out and ascertain such part or parts thereof as they the said Commissioners shall think necessary and proper for making completing maintaining using and improving the said waterworks reservoirs pipes aqueducts and all such other matters works and conveniences as they shall think necessary for effecting the purposes aforesaid and the said Commissioners are hereby empowered to make such engines houses and other works and all such cisterns pools reservoirs basins main pipes hand pipes stand pipes service pipes branches of lead and other metal cocks chamber cocks cocks in common stop-cocks valves fire-plugs air-plugs firecocks mains feeders fanapers and pumps as the said Commissioners shall think requisite for the several purposes of the said waterworks and also from time to time to direct alter repair widen enlarge amend and discontinue the same.

Section 29 And be it enacted that it shall be lawful for the said Commissioners and they are hereby fully authorised and empowered (subject to the restrictions and provisions herein mentioned) by their servants agents workmen and others from time to time to break up the soil flaggings pitchings pavements and materials of any of the streets squares highways lanes roads ways passages and places now made or laid out or that may be hereafter made or laid out within the liberties of the said town of Aberystwyth whether the same or any of them shall or shall not be public highways or repaired or liable to be repaired by the inhabitants of the said town and to dig and sink trenches and drains and to lay mains and pipes and put stop-cocks syphons plugs or branches from such pipes in under across and along the same streets squares highways lanes roads paths passages and places or any of them and from time to time to alter the position of and to repair relay and maintain such pipes stop-cocks syphons and plugs or branches and also with the consent and permission of the occupiers to carry fit up and furnish any pipe or pipes cocks or

A.D. 1913.
—
Power to
Commis-
sioners to
break up
pavements
lay pipes &c.

A.D. 1913. — branches or other necessary apparatus from any main or pipe laid in any street square highway lane road path passage or place within the same liberties against into or through any dwelling-houses manufactories public or private buildings for the purpose of lighting any public or private lamp or supplying any public or private building or public or private cisterns or pumps with water from such mains or pipes and to erect fix and set up any machine or other apparatus necessary or requisite for securing to any dwelling-house manufactories public or private buildings cisterns or pumps a proper and competent supply of gas or water (as the case may be) or for measuring and ascertaining the extent of such supply and also to alter and amend any bad or imperfect work which shall have been so placed or any works which shall have been injured or damaged and to do all such acts matters and things as shall from time to time be or become necessary and convenient for completing amending repairing improving supplying and using the same they the said Commissioners their agents officers workmen and servants doing as little damage as may be in the execution of the powers hereby granted to them and making satisfaction in the manner herein-after mentioned to the owners proprietors and all other persons interested in the lands tenements waters and hereditaments respectively which shall be used for the purposes of this Act or which shall be injured or damaged by means of the exercise of any of the powers hereby granted or to be by them sustained by reason of all or any of the powers of this Act and this Act shall be sufficient to indemnify the said Commissioners their agents officers servants workmen assistants and all other persons whomsoever for what they or any of them shall do or cause to be done under or by virtue of the powers hereby granted:

Rights of owners and tenants to water saved.

Provided always that nothing herein contained shall extend to deprive or hinder the tenants or owners of the lands or grounds in or through which the said streams of water or the other sources springs and rivulets herein-before mentioned have been used to flow or arise from taking or using a sufficient supply of the water flowing or arising within the lands or grounds of such respective owners or tenants for the use of their houses lands grounds premises and cattle thereon or therein but that proper watering places shall be made and supplied for the use of the cattle of such respective owners and tenants by the said Commissioners without requiring any compensation for the use thereof from such persons as aforesaid.

Terrace-road not to be used for conveying stone &c.

Section 95 And be it enacted that the road within the aforesaid liberties called the Marine Terrace and Victoria Terrace shall not after notice given by the said Commissioners and painted on a board to be fixed in a conspicuous place on or near the same road be used by any person whomsoever for the conveyance by carts waggons or other carriages of any stone bricks lime metal sand or other heavy

materials (except to any house or houses situate on the said terrace) under pain of forfeiting and paying for every offence committed against this enactment the sum of ten shillings to be recovered in like manner as other penalties or forfeitures are by this Act authorised to be recovered. A.D. 1913.

Section 108 And be it enacted that it shall be lawful for the said Commissioners and they are hereby authorised and empowered from time to time as to them shall seem necessary and expedient to erect set up build repair and maintain either within or without the aforesaid liberties groins water jetties piers and other works for the protection of the said town or any part of the same or of the beach or shore thereof from the encroachments of the sea and for facilitating the approach to the sea and the passage along the said beach and the landing of coals and other merchandise on the beach or shore of the said town. Power to erect groins.

SCHEDULE.

Parish of LLANBADARNFAWR Township of VAENOR ISSA.

No. in Plan.	Owners or reputed Owners.	Lessees.	Occupiers.	Description.
1 2 3 4	Roderick Richardes -	- - -	Richard Thomas	Arable and pasture.
A 1	- - -	- - -	- - -	Farm road.
5	James Hughes -	Margaret Rees	Margaret Rees -	Pasture.
6	Ditto -	- - -	- - -	Plantation.
7 8 9 10	Ditto -	Margaret Rees	Hugh Davies -	Pasture and arable.
11 12 13				
14				
15 16	John Evans William Harries and Elinor his wife Mary Evans and Elizabeth Evans.	John Edwards	- - -	Pasture.
17 18 19	James Hughes -	- - -	Thomas Lewis -	Pasture and arable.
20				
21 22	John Evans William Harries and Elinor his wife Mary Evans and Elizabeth Evans.	- - -	Ditto -	Ditto.
			John Edwards -	Pasture.
23	Roderick Richardes -	- - -	Evan Davies -	Ditto.
24	Isaac Lloyd Williams and Anne his wife.	- - -	Ditto -	Ditto.
			Edward Jenkins	Ditto.
25 26	Pryse Pryse -	- - -	Abel Powell Davies.	Ditto.
27	Reverend Isaac Bon-sall.	- - -	Thomas Rees -	Ditto.

A.D. 1913.

No. in Plan.	Owners or reputed Owners.	Lessees.	Occupiers.	Description.
28	Roderick Richardes -	- - -	John Parry -	Pasture.
29	Ditto - -	- - -	Edward Thomas	Ditto.
30	Ditto - -	- - -	Richard Roberts	Ditto.
31	Ditto - -	- - -	Ditto - -	Plantation.
32	Ditto - -	- - -	Ditto - -	Ditto.
33	Ditto - -	- - -	Anne James -	Pasture.
34	Ditto - -	- - -	David James -	Ditto.
35 36 37	Ditto - -	- - -	Roderick Richardes.	Meadow.
38 39	Ditto - -	- - -	- - -	Plantation.
40	Ditto - -	- - -	Benjamin Jones	Arable.
41	Ditto - -	- - -	Ditto - -	Plantation.
42 43 44	Ditto - -	- - -	- - -	Arable and pas-
45 46	- - -	- - -	- - -	ture.
47	Ditto - -	- - -	- - -	Plantation.
48	Ditto - -	- - -	- - -	Garden.
49	Ditto - -	- - -	- - -	Arable.
50	- - -	- - -	- - -	Plantation.
51 52 53	Roderick Richardes -	- - -	Benjamin Jones	Pasture.
54 55 56	- - -	- - -	- - -	- - -
57	Ditto - -	- - -	- - -	Plantation.
58 59	Ditto - -	- - -	Benjamin Jones	Pasture.
60	Isaac Lloyd Williams and Anne his wife.	- - -	Edward Jenkins	Ditto.
TOWNSHIP OF VAENOR UCHA.				
61	Isaac Lloyd Williams and Anne his wife and Jane Davies widow.	- - -	John Hughes senior.	Ditto.
62	Isaac Lloyd Williams and Anne his wife.	- - -	Avermah Jen- kins.	—

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